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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
(Related: CGC-21-594102)

TO

**NOTICE OF LODGING —
PRONG-ONE
OPPOSITION CHECKLIST
(Cal. R. Ct., rule 3.1110(f))**

Anti-SLAPP Hearing: May 13, 2026
Time: 9:00 a.m.
Dept.: 302
Judge: Hon. Joseph M. Quinn

Lodging only; not for adjudication on
Apr. 30, 2026 (MFL-SAC) or May 6, 2026
(MFL-TAC).

ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that, for the limited purpose of record preservation in connection with Defendant CSAA Insurance Exchange's noticed special motion to strike under Code of Civil Procedure § 425.16, set for hearing **Wednesday, May 13, 2026**, 9:00 a.m., Department 302 (Hon. Joseph M. Quinn), Plaintiff Franciscus Dylan Rosario, in pro per, hereby lodges with the Court the **Merged Prong-One Opposition Checklist** dated April 28, 2026 (Exhibit 1).

This lodging is made under California Rules of Court, rule 3.1110(f). It is **not** offered for adjudication on the **April 30, 2026** MFL-SAC hearing in this action before Hon. Joseph M. Quinn

(Dept. 302), and **not** for the **May 6, 2026** MFL-TAC hearing in companion CGC-25-631801 before Hon. Christine Van Aken (Dept. 301). It is offered to preserve, on the docket, Plaintiff's prong-one defenses **before** the noticed May 13, 2026 anti-SLAPP hearing in this action and **before** the May 12, 2026 anti-SLAPP hearing in companion CGC-25-631801.

The lodged checklist is Plaintiff's working synthesis of California anti-SLAPP prong-one doctrine, organized in four parts:

- **Part I — Shared Items 1–13** (case-neutral prong-one defects);
- **Part II — Case-specific items 801-A through 801-E** (companion CGC-25-631801);
- **Part III — Case-specific items 802-A through 802-F** (this action); and
- **Part IV — Drafting notes** (not for filing; numbering / cross-case spine).

The same exhibit is being lodged contemporaneously in companion CGC-25-631801 to preserve the **Position-A / Position-B** structural-impossibility spine pleaded in both Third Amended Complaints (item 801-D = item 802-D).

Plaintiff **does not** seek any merits ruling on the lodged checklist at any present hearing. Plaintiff will rely on the substantive prong-one positions in Plaintiff's forthcoming **Opposition to Defendant's Special Motion to Strike** (to be filed in conformity with Code Civ. Proc. § 1005(b) for the May 13, 2026 hearing) and in any tendered standalone California Rule of Professional Conduct 3.3(a)(2) outer-limit notice. The lodged checklist is preserved here so that, if a question of preservation, waiver, or candor under rule 3.3(a)(2) later arises, the controlling prong-one authorities — including Park, Bonni, Baral, Rusheen, Kwikset, Neville, Briggs, Kimmel, Flatley, Egan, Wilson v. 21st Century, Engalla, the Insurance Code § 790.03(h) regulatory floor, and the 10 CCR § 2695.7 claim-investigation standards — appear on the docket as of April 28, 2026.

LODGED DOCUMENTS

Plaintiff lodges:

1. **Exhibit 1 — Merged Prong-One Opposition Checklist (Apr. 28, 2026)**. Source: ANTISLAPP-PRONG-ONE-Same document lodged in companion CGC-25-631801.

1 **RESERVATION OF RIGHTS**

2 Lodging this checklist does not waive any right and is not a tender of merits argument on the
3 May 13, 2026 special motion to strike. Plaintiff reserves all rights, including (i) full briefing in
4 the noticed Opposition; (ii) Code Civ. Proc. § 425.16(c)(1) fees and sanctions if Defendant's
5 motion is denied; (iii) reservation of standalone California Rule of Professional Conduct 3.3(a)(2)
6 candor notice on the **outer-limit prong-one authorities** (Insurance Code § 790.03(h); 10 CCR §
7 2695.7; Egan; Wilson v. 21st Century). If the Court requires a separate reservation number for
8 lodging-only papers, Plaintiff will comply on request.

Dated: April 28, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
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Franciscus Dylan Rosario,
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CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
(Related: CGC-21-594102)

Cases

**EXHIBIT 1 — MERGED PRONG-ONE
OPPOSITION CHECKLIST
(Lodged Apr. 28, 2026)**

Anti-SLAPP Hearing: May 13, 2026
Dept.: 302
Judge: Hon. Joseph M. Quinn

covered (single document, separate case blocks):

Case	Caption	Court	Anti-SLAPP hearing
CGC-25-631801	<u>Rosario v. CSAA Insurance Exchange; Carbone, Smith & Koyama, LLP; Michael R. Chambers; Phillips, Spallas & Angstadt, LLP; Priya D. Navaratnasingham; Alberto Reyna</u>	Hon. Christine Van Aken, Dept. 301	May 12, 2026 (per TAC § Defense Hearings)
CGC-25-631802	<u>Rosario v. CSAA Insurance Exchange</u>	Hon. Joseph M. Quinn, Dept. 302	May 13, 2026 (per TAC § Defense Hearings)

Built from: the three source checklists captured in 00-DRAFT-RAW-PRONG-ONE-CHECKLISTS.md (this directory). The merger keeps the strongest formulation of every shared item, eliminates duplication, and breaks out the case-distinct items into per-case blocks.

Disclaimer: I am self-represented and not an attorney. This document is a checklist-style synthesis of California anti-SLAPP prong-one doctrine for use in oppositions to two pending special motions to strike. It is not legal advice; verify every citation and tailor every paragraph to the specific motion before filing.

PART I — SHARED PRONG-ONE CHECKLIST (APPLIES TO BOTH 801 AND 802)

This Part is drafted to be lifted as a single block into either opposition. Every item in this Part is a generic prong-one defect that fails the defense motion in **both** actions independently of case-specific facts. Where a case-specific application is needed, see Part II (CGC-25-631801) or Part III (CGC-25-631802) below.

Defendants cannot satisfy prong one because they fail to show:

- 1. That the motion is directed to the actual operative causes of action and distinct claims for relief, rather than to imagined theories, stray allegations, or non-existent counts.** Case anchors: Baral v. Schnitt (2016) 1 Cal.5th 376, 393–395 (anti-SLAPP motion must identify and target the specific allegations of protected activity that supply the elements of a pleaded claim for relief); Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1010–1012.
- 2. That the acts they identify are themselves protected acts within Code of Civil Procedure § 425.16(e), rather than ordinary underlying conduct merely described in writings or litigation papers.** Case anchors: Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884; Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062–1063.
- 3. That the challenged claims “arise from” protected activity in the statutory sense, meaning the protected act itself supplies the basis for liability, rather than merely triggering the suit, providing context, or furnishing evidence.** Case anchors: City of Cotati v. Cashman (2002) 29 Cal.4th 69, 76–78; Park, supra, 2 Cal.5th at 1063–1064; Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 66.
- 4. That the principal thrust or gravamen of each cause of action arises from protected petitioning or free-speech activity, rather than from non-communicative pre-litigation conduct.** Case anchors: Park, supra, 2 Cal.5th at 1062–1063; Baral, supra, 1 Cal.5th at 394–395; Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1056 (distinguishing communicative from non-communicative acts).
- 5. That the allegedly protected communication is itself the injury-producing conduct, rather**

than proof of separate non-communicative wrongdoing. Case anchors: Park, supra, 2 Cal.5th at 1060, 1064–1065 (“a claim may be struck only if the speech or petitioning activity itself is the wrong complained of”); Bonni, supra, 11 Cal.5th at 1009.

6. That the claims would not have been brought “but for” the allegedly protected activity, as opposed to having been triggered by, or merely connected with, it. Case anchors: City of Cotati, supra, 29 Cal.4th at 78; Park, supra, 2 Cal.5th at 1068; Rand Resources, LLC v. City of Carson (2019) 6 Cal.5th 610, 621.

7. That each challenged cause of action, or each distinct claim for relief within a cause of action, is tied to a specific protected act on a claim-by-claim basis, rather than through a global characterization of the case. Case anchors: Baral, supra, 1 Cal.5th at 393–395; Bonni, supra, 11 Cal.5th at 1010–1011.

8. That the motion targets a claim for relief that may actually be stricken, rather than mere background allegations, evidentiary references, or factual narrative. Case anchors: Baral, supra, 1 Cal.5th at 393–394; Park, supra, 2 Cal.5th at 1064.

9. That any prelitigation communication on which Defendants rely was made in serious and good-faith contemplation of litigation, rather than as part of ordinary business, claims-handling, regulatory, or evidentiary activity. Case anchors: Neville v. Chudacoff (2008) 160 Cal.App.4th 1255, 1268–1269; Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106, 1115.

10. That, to the extent Defendants invoke § 425.16(e)(3) or (e)(4), the speech concerns a genuine public issue or issue of public interest under the required content-and-context analysis, rather than a private dispute repackaged as “speech.” Case anchors: FilmOn.com Inc. v. DoubleVerify Inc. (2019) 7 Cal.5th 133, 149–150; Wilson v. Cable News Network, supra, 7 Cal.5th at 890–892.

11. That any amended pleading reopened a fresh anti-SLAPP window as to the claims they now attack, rather than merely reasserting an untimely challenge to claims already present in earlier pleadings. Case anchors: Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism (2018) 4 Cal.5th 637, 645–646, 650.

12. That the conduct for which they seek anti-SLAPP protection is not illegal as a matter of law, because the anti-SLAPP statute does not shield unlawful conduct simply because it was carried out through speech or petitioning activity. Case anchors: Flatley v. Mauro (2006) 39 Cal.4th 299, 317–320. (Per-case illegality predicates: § 6128(a) and Rule 3.3(a)(1) for Case 801; Insurance Code § 790.03(h) and 10 CCR § 2695.7 for Case 802. See Parts II and III below.)

13. That the Litigation Privilege (Civ. Code § 47(b)) reaches the underlying non-communicative misconduct on which liability depends, because the privilege does not immunize non-communicative tortious courses of conduct, nor can a defendant retroactively immunize a prior bad act by later writing a pre-litigation letter or filing a tribunal paper that describes it. Case anchors: Kimmel v. Goland (1990) 51 Cal.3d 202, 211 (privilege applies only to communicative acts; does not privilege tortious courses of conduct); Rusheen v. Cohen, supra, 37 Cal.4th at 1056, 1058.

Shared closing paragraph (use in either opposition)

Because Defendants fail to identify a pleaded claim whose liability-producing act is protected activity, and instead attack non-existent theories, evidentiary documents, and background allegations, they do not carry their threshold burden under prong one. Under City of Cotati, supra, 29 Cal.4th at 76–78, Park, supra, 2 Cal.5th at 1062–1065, and Baral, supra, 1 Cal.5th at 393–395, the burden therefore never shifts to Plaintiff under prong two, and the special motion to strike must be denied outright.

PART II — CASE-SPECIFIC PRONG-ONE BLOCK: CGC-25-631801

Caption: Franciscus Dylan Rosario v. CSAA Insurance Exchange; Carbone, Smith & Koyama, LLP; Michael R. Chambers (SBN 132394); Phillips, Spallas & Angstadt, LLP; Priya D. Navaratnasingham (SBN 252686); Alberto Reyna (SBN 347323); Does 1–20. **Court:** Superior Court of California, County of San Francisco — Hon. Christine Van Aken, Dept. 301. **Anti-SLAPP hearing:** May 12, 2026 (per TAC). **Operative pleading at hearing:** Second Amended Complaint (filed Apr. 21, 2026). Proposed Third Amended Complaint lodged for § 425.16(b)(2) step-two consideration; MFL-TAC noticed May 22, 2026. **Theories:** (1) Extrinsic Fraud; (2) & (7) Constructive

Fraud (Civ. Code § 1573); (3) Bus. & Prof. Code § 6128(a) Attorney Deceit; (4) Negligence Per Se; (5) Intentional Misrepresentation (Civ. Code § 1710); (6) Aiding and Abetting Fraud (vs. CSAA); (8) Officer-of-the-Court Fiduciary Breach. Reckless-disregard scienter floor under Engalla/Modnick/Sanders/Bily/Wilson/Shafer.

Why prong one fails on the 801 record

In addition to the Part I shared defects, Defendants in Case 801 cannot satisfy prong one because they fail to show:

801-A. That the tribunal-directed disclaimers they identify as “protected” — Motions in Limine Nos. 6 and 17 (filed Jan. 17, 2025), the Feb. 18, 2025 hearing colloquy (RT 141:4–11), and the April 16, 2025 trial admission (RT 7, 213:13–15) in the underlying Rosario v. Abdelhalim, CGC-21-594102 — are themselves the injury-producing acts of extrinsic fraud, attorney deceit, constructive fraud, and officer-of-the-court fiduciary breach pleaded in the operative complaint, rather than incidental communications that happen to evidence those wrongs. Plaintiff does not sue for the speech; Plaintiff sues because the speech, made by officers of the court speaking as CSAA’s agents under Civ. Code §§ 2330, 2338 and Evid. Code § 1222, “effectively prevented” a fair adversary hearing. That is extrinsic fraud as a matter of binding Cal. Sup. Ct. doctrine. Case anchors: Estate of Sanders (1985) 40 Cal.3d 607, 614–616 (fiduciary breach by officer of the court measured objectively); In re Marriage of Modnick (1983) 33 Cal.3d 897, 905–907 (concealment that operates as a denial of the existence of evidence is extrinsic fraud); Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1032–1035 (independent action in equity to set aside judgment procured by extrinsic fraud is not itself a SLAPP).

801-B. That the May 4, 2023 file-transfer concealment (Carbone, Smith & Koyama → Phillips, Spallas & Angstadt) — i.e., the non-communicative omission to convey the production history for the 911 audio, body-worn camera footage, and CAD logs — is “protected activity” within § 425.16(e) at all. That handoff is a non-communicative file-handling act; it is not “speech” or “petitioning”; and it is the structural foundation of the constructive-fraud and aiding-and-abetting-fraud counts, which exist independently of any later MIL or hearing speech. Case anchors: Park, *supra*, 2 Cal.5th at 1060, 1064–1065 (claim is not subject to strike where the speech

merely communicates the underlying decision); Rusheen v. Cohen, supra, 37 Cal.4th at 1056 (non-communicative conduct falls outside the statute); Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310 (anti-SLAPP does not apply to claims challenging underlying business / file-handling practices).

801-C. That the disclaimers and concealment on which Defendants rely are not illegal as a matter of law within the meaning of Flatley v. Mauro. The same conduct that Defendants seek to dress as “petitioning” simultaneously violates (i) Bus. & Prof. Code § 6128(a) (attorney deceit toward a non-client adverse party — Shafer v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone (2003) 107 Cal.App.4th 54, 79–80, expressly reaching reckless disregard); (ii) Cal. Rule of Prof. Conduct 3.3(a)(1) and the duty of candor to the tribunal (with the “knowingly” element satisfied by deliberate avoidance under People v. Smith (2014) 60 Cal.4th 603, 616); and (iii) Code of Civil Procedure § 128.7(b)’s reasonable-inquiry certification floor, Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 286–287. Conduct that is unlawful as a matter of law is excluded from § 425.16’s protection at the threshold. Flatley v. Mauro (2006) 39 Cal.4th 299, 317–320; cf. Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232 (limiting Flatley to conduct illegal as a matter of law, a limit Plaintiff’s facts satisfy because the deceit is conceded or undisputed on the face of the certified transcript).

801-D. That Position B (the 2025 panel-counsel disclaimers) and Position A (CSAA’s own Feb. 25, 2021 “concluded investigation” representation in companion Case 802) can both be honest, when both poles are statements of CSAA itself under Civ. Code §§ 2330, 2338 and Evid. Code § 1222. The structural impossibility of honest belief in both poles is, by itself, Engalla reckless disregard and is Position-A-locks-Position-B extrinsic fraud — neither of which is “protected activity” within § 425.16(e). Case anchors: Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974; Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720–721; Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 328 (deliberate-avoidance pattern as malice).

801-E. That the Litigation Privilege (Civ. Code § 47(b)) immunizes the underlying production-history concealment. The privilege protects communicative acts; the May 4, 2023 file-transfer

omission and the failure to retrieve the original 2021 CSAA claim file before certifying disclaimers under § 128.7(b) are non-communicative acts. Defendants cannot dress non-communicative concealment in a privilege that reaches only speech. Kimmel v. Goland, supra, 51 Cal.3d at 211; Rusheen v. Cohen, supra, 37 Cal.4th at 1056, 1058; Kwikset, supra, 51 Cal.4th 310.

Closing paragraph — Case 801 (suggested)

Because every act Defendants identify as “protected” is either (i) the very wrong sued upon as extrinsic fraud, attorney deceit, and officer-of-the-court fiduciary breach — and therefore not “protected activity” within § 425.16(e) under Park and Bonni — or (ii) a non-communicative file-handling omission that was never speech to begin with — and therefore outside the statute under Rusheen and Kimmel — and because the same conduct is illegal as a matter of law under Bus. & Prof. Code § 6128(a) and Rule 3.3(a)(1), placing it outside § 425.16 under Flatley, Defendants do not carry their prong-one burden. The special motion to strike must be denied without reaching prong two; in the alternative, on the lodged Third Amended Complaint and the Sweetwater record, Plaintiff easily satisfies the minimal-merit showing under prong two on the reckless-disregard scienter floor.

PART III — CASE-SPECIFIC PRONG-ONE BLOCK: CGC-25-631802

Caption: Franciscus Dylan Rosario v. CSAA Insurance Exchange; Does 1–50. **Court:** Superior Court of California, County of San Francisco — Hon. Joseph M. Quinn, Dept. 302. **Anti-SLAPP hearing:** May 13, 2026 (per TAC). **Operative pleading at hearing:** Second Amended Complaint (filed Apr. 16, 2026). Proposed Third Amended Complaint lodged for § 425.16(b)(2) step-two consideration; MFL-TAC noticed May 26, 2026. **Theories:** (1) Fraud / Intentional Omission (Civ. Code § 1710(1) & (3)); (2) Concealment / Half-Truth (§ 1710(3)); (3) Unfair Competition (Bus. & Prof. Code § 17200); (4) Negligent Misrepresentation (§ 1710(2)); (5) Declaratory Relief (Code Civ. Proc. § 1060). Reckless-disregard scienter floor under Engalla/Wilson/Bily.

Why prong one fails on the 802 record

In addition to the Part I shared defects, Defendants in Case 802 cannot satisfy prong one because they fail to show:

802-A. That the February 25, 2021 written denial letter (Claim No. 1004-09-1054, signed by Sarah Rash, representing that the investigation was “concluded” and that CSAA had “carefully reviewed the facts and circumstances of [the] claim”) is itself the injury-producing act, as opposed to the after-the-fact written evidence of the underlying non-communicative regulatory failure to investigate. Plaintiff does not sue because CSAA wrote a letter; Plaintiff sues because CSAA, before writing the letter, **affirmatively closed the claim file at twenty-one days** without retrieving the four reasonably-available “Silent Witnesses” — (i) the 911 audio recording and the corresponding SFDEM CAD event record; (ii) the SFPD body-worn camera footage; (iii) the SFPD Computer-Aided Dispatch log; and (iv) any supplemental SFPD report concerning the February 4, 2021 collision — each of which was reasonably available by routine subpoena duces tecum (Code Civ. Proc. § 1985 + Evid. Code § 1560), Public Records Act request (Gov. Code § 7920 et seq.), Penal Code § 832.7(b) request, or insured-authorization channel. The denial letter is evidence of that underlying regulatory failure, not the actionable wrong. Case anchors: Park, supra, 2 Cal.5th at 1060, 1064–1065 (claim is not subject to strike merely because it contests an action arrived at following speech, or thereafter communicated by speech — the speech itself must be the wrong); Rusheen v. Cohen, supra, 37 Cal.4th at 1056 (non-communicative conduct outside the statute); Kwikset Corp. v. Superior Court, supra, 51 Cal.4th 310 (challenges to underlying business practices not subject to anti-SLAPP).

802-B. That CSAA’s Feb. 25, 2021 denial letter is a “prelitigation communication” within § 425.16(e)(2) at all, as opposed to ordinary first-party-style claims-handling correspondence sent to an unrepresented direct third-party claimant — i.e., precisely the kind of “ordinary business, claims-handling, or evidentiary activity” that Neville and Briggs exclude from § 425.16. A 21-day denial letter to a non-litigating claimant that says the file is “concluded” is the antithesis of “serious and good-faith contemplation of litigation”; it is a regulatory communication governed by the standards in 10 CCR §§ 2695.4(a) and 2695.7(b)–(d), and Insurance Code §

790.03(h)(1)/(3)/(5). Case anchors: Neville v. Chudacoff (2008) 160 Cal.App.4th 1255, 1268–1269; Briggs, supra, 19 Cal.4th at 1115.

802-C. That CSAA’s pre-litigation, non-communicative, regulatory failure to investigate is “protected activity” within § 425.16(e), or in the alternative, that it is not illegal as a matter of law under Flatley v. Mauro. The same conduct violates (i) the regulatory floor at 10 CCR § 2695.7(d) (“decision must be based on all information reasonably available”); (ii) Insurance Code § 790.03(h)(1), (h)(3), and (h)(5) (failure to acknowledge / promptly investigate / effectuate prompt, fair, equitable settlements); and (iii) the Cal. Sup. Ct. duty under Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809, 818–819, and Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720–721, to investigate thoroughly and fairly in the face of inquiry-notice indicia in the file. Conduct that is regulatorily and statutorily prohibited is not transformed into “petitioning” by being later memorialized in a denial letter. Flatley v. Mauro, supra, 39 Cal.4th 299, 317–320.

802-D. That Position A (the Feb. 25, 2021 “concluded investigation” representation) and Position B (the 2025 panel-counsel disclaimers in companion CGC-25-631801) can both be honest, when both poles are statements of CSAA itself under Civ. Code §§ 2330, 2338, and Evid. Code § 1222 (see also American Mutual Liability Ins. Co. v. Superior Court (1974) 38 Cal.App.3d 579, 591–592; Gulf Insurance Co. v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone (2000) 79 Cal.App.4th 114, 124; Purdy v. Pacific Automobile Ins. Co. (1984) 157 Cal.App.3d 59, 76). The structural impossibility of honest belief in both poles is, by itself, Engalla reckless disregard and forecloses any “genuine dispute” defense under Wilson v. 21st Century Ins. Co., supra, 42 Cal.4th at 723 — leaving the defense without a path to recharacterize regulatory misconduct as “speech.”

802-E. That the Litigation Privilege (Civ. Code § 47(b)) reaches the underlying premature file-closure act and the institutional “deny-delay-defend” practice pleaded at ¶¶ 28–30. The privilege protects communicative acts; closing a claim file before retrieving reasonably-available first-responder records is a non-communicative regulatory act. Defendants cannot retroactively privilege institutional misconduct by writing a denial letter “about” it. Case anchors: Kimmel v. Goland, supra, 51 Cal.3d at 211; Rusheen v. Cohen, supra, 37 Cal.4th at 1056, 1058.

802-F. That CSAA’s “funding and directing of defense counsel” in the underlying Rosario v. Abdelhalim litigation is “petitioning” by CSAA itself, given that CSAA was a non-party indemnitor whose underwriting of the defense is commercial and contractual, not petitioning for redress of its own grievances. A non-party insurer’s financial underwriting of an insured’s defense, on its own claim file, is a commercial activity outside § 425.16(e). Case anchors: Park, supra, 2 Cal.5th at 1062–1065; Rusheen, supra, 37 Cal.4th at 1056.

Closing paragraph — Case 802 (suggested)

Because every act Defendant CSAA identifies as “protected” is either (i) ordinary first-party-style claims-handling correspondence to an unrepresented direct third-party claimant — i.e., the kind of regulatory activity Neville and Briggs exclude from § 425.16 — or (ii) the after-the-fact written evidence of CSAA’s pre-litigation, non-communicative regulatory failure to retrieve reasonably-available first-responder evidence before closing the claim file at twenty-one days — i.e., conduct outside § 425.16 under Park, Rusheen, and Kwikset — and because the same conduct is illegal as a matter of law under 10 CCR § 2695.7(d), Insurance Code § 790.03(h), and Egan/Wilson, placing it outside § 425.16 under Flatley, CSAA does not carry its prong-one burden. The special motion to strike must be denied without reaching prong two; in the alternative, on the lodged Third Amended Complaint and the Sweetwater record, Plaintiff easily satisfies the minimal-merit showing under prong two on the reckless-disregard scienter floor.

PART IV — DRAFTING NOTES (DO NOT FILE)

1. **Numbering.** Part I is shared (items 1–13); Parts II and III use letter-suffixes (801-A through 801-E; 802-A through 802-F) so the same “Item 4 (Park gravamen)” reads identically across both oppositions.
2. **Lodging hook.** Both Part II and Part III closings reference the lodged TAC at step two via Sweetwater Union High Sch. Dist. v. Gilbane Bldg. Co. (2019) 6 Cal.5th 931 and Code Civ. Proc. § 425.16(b)(2). That preserves the fallback even if the court never reaches prong two.

3. **Cross-case spine.** Items 801-D and 802-D mirror each other. Citing the companion case is appropriate under both TACs' § 0.5 cross-case spine; both TACs already plead the structural impossibility expressly.
4. **Litigation privilege overlap.** Item 13 (shared) and items 801-E / 802-E (case-specific) intentionally overlap. Use Item 13 if the defense argues litigation privilege as a free-standing affirmative defense; use 801-E / 802-E to defeat its use as a prong-one workaround for non-communicative conduct.
5. **Newport Harbor (item 11).** Useful only if the operative pleading at the hearing is the SAC (filed Apr. 16/Apr. 21, 2026). If the court considers the lodged TAC, raise Newport Harbor defensively to confirm that the TAC's reckless-disregard floor and § 6128(a)/Insurance Code § 790.03(h) anchors do not reopen any window the defense missed.
6. **Source map.** Item 1 = Source 1 (item 1) + Source 3 (item 1). Item 2 = Source 1 (item 2). Item 3 = Source 1 (item 3) + Source 3 (item 2). Item 4 = Source 2 (item 1). Item 5 = Source 1 (item 4). Item 6 = Source 2 (item 2). Item 7 = Source 1 (item 5). Item 8 = Source 1 (item 7). Item 9 = Source 1 (item 6). Item 10 = Source 1 (item 8). Item 11 = Source 1 (item 9). Item 12 = Source 1 (item 10) + Source 2 (item 4). Item 13 = Source 3 (item 4). Source 2 (item 3) and Source 2 (item 4) split into the per-case Parts II and III. Source 3 (item 3) is folded into Item 5.

END OF MERGED CHECKLIST

Source draft: 00-DRAFT-RAW-PRONG-ONE-CHECKLISTS.md (this directory).